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GENEX UK LIMITED
TERMS AND CONDITIONS OF SALE AND MANUFACTURE

1 Definitions and scope

1.1 “Genex” means Genex UK Limited. “Customer” means the business purchasing Goods or Services. “Goods” means the products to be supplied. “Services” means the manufacturing, processing or other services expressly agreed.

1.2 “Contract” means an accepted order incorporating these terms, Genex’s written order acknowledgement and the agreed Specification. Unless expressly agreed otherwise, each accepted order is a separate Contract.

1.3 “Specification” means the drawings, CAD files, revision levels, materials, tolerances, finishes, inspection requirements and other technical requirements expressly agreed in writing.

1.4 “Working day” means Monday to Friday, excluding public holidays in England. “Writing” includes email.

1.5 These terms apply to business customers only.

2 Quotations and order acceptance

2.1 Quotations are invitations to place an order and remain valid for 30 days unless otherwise stated. A Contract is formed when Genex issues its written order acknowledgement.

2.2 These terms exclude the Customer’s purchasing terms, supplier manuals, portal conditions and other contractual requirements unless expressly accepted in writing by an authorised Genex representative.

2.3 Acknowledging receipt of a purchase order, entering a customer portal or completing an administrative document does not, by itself, constitute agreement to alternative terms.

2.4 Departures from these terms must be expressly agreed in writing. Agreed special conditions take priority. Technical documents govern technical requirements and do not introduce additional commercial obligations unless expressly accepted.

2.5 The Customer must check the order acknowledgement and promptly identify discrepancies. A material discrepancy must be resolved before affected work proceeds.

3 Drawings design and technical requirements

3.1 The Customer must provide complete, accurate and consistent technical information, including the correct drawing and CAD revisions, before manufacture begins.

3.2 Genex manufactures to the agreed Specification. Unless expressly included, Genex does not undertake product design, design verification, application testing or validation of the Customer’s finished assembly.

3.3 The Customer is responsible for its design, specified materials and tolerances, and suitability for the intended application. Manufacturing suggestions do not transfer that responsibility unless expressly agreed.

3.4 Genex remains responsible for compliance with the Contract, reasonable skill and care, and obligations imposed on it by law.

3.5 Before quotation, the Customer must disclose safety-critical applications and special regulatory, certification, traceability, testing or end-use requirements.

3.6 Conflicts between drawings, CAD files and instructions must be resolved in writing. No document automatically takes priority unless the Contract specifies this.

3.7 Cosmetic finish, weld appearance, coating requirements, measurement methods, sampling plans and acceptance criteria must be agreed where relevant. Rejection must not be based solely on an unstated requirement or a later revision.

3.8 Material certificates, inspection reports, first-off approval, production part approval, additional testing and special records are included only where expressly agreed.

4 Approvals and changes

4.1 Where Customer approval is required, Genex may withhold affected production until written approval is received. Silence does not constitute technical approval.

4.2 Approval confirms only the features and requirements covered by that approval. It does not excuse later nonconformity with the Specification.

4.3 Changes to the Specification, quantity, batch size or delivery programme require written agreement, including their effect on prices, existing stock and delivery dates.

4.4 Genex may reasonably extend delivery dates and recover reasonable evidenced additional costs caused by late information, delayed approvals, changed instructions or other Customer failures.

4.5 Genex may suspend affected work pending clarification of a material technical discrepancy, notifying the Customer promptly.

5 Prices and price adjustments

5.1 Genex determines prices for new orders at its discretion. Prices apply only to the quantities, batch sizes, Specification and delivery programme quoted.

5.2 Unless expressly included, prices exclude VAT, carriage, insurance, special packaging, additional testing, certification and export documentation charges.

5.3 Accepted-order prices may change only under this clause, an expressly agreed pricing arrangement or a written variation.

5.4 Genex may increase prices for Goods or Services not yet supplied to reflect increases arising after acceptance in relevant material, energy, labour, subcontract processing, transport, insurance, duties, taxes other than taxes on Genex's profits, or exchange-rate costs. The adjustment must reasonably reflect the effect on the affected supply.

5.5 Genex may adjust prices for Customer-requested changes, reduced quantities or batch sizes, altered schedules, or additional costs caused by Customer failures.

5.6 Unless agreed otherwise, an increase under clause 5.4 requires at least 30 days' written notice identifying the affected supply, revised price, effective date and reason. No increase applies retrospectively.

5.7 Within 10 working days of receiving a clause 5.4 notice, the Customer may cancel the affected unperformed portion without a cancellation penalty. Completed conforming Goods and expressly authorised unavoidable commitments existing before the notice remain payable on the original pricing basis, allowing for avoided costs, reuse and recoveries.

5.8 Forecasts and unaccepted future call-offs do not fix future prices. An expressly agreed fixed-price commitment or pricing formula takes priority over inconsistent provisions of this clause.

6 Scheduled orders stock and cancellation

6.1 Accepted orders are binding. Forecasts are planning information unless expressly accepted as firm purchasing commitments.

6.2 Blanket orders and stockholding arrangements must identify firm quantities, authorised material commitments, stock limits, call-off dates and a final delivery or collection date.

6.3 The Customer is responsible for purchases and manufacture it expressly authorises within those limits, including stock made obsolete by its drawing changes or product discontinuation.

6.4 If no final date was agreed and authorised stock remains uncalled for 90 days after Genex notifies the Customer that it is ready, Genex may give 30 days' written notice requiring delivery or collection and payment under the agreed terms.

6.5 Cancellation or rescheduling requires Genex's written agreement, except where the Customer has a contractual or legal right to terminate.

6.6 On an agreed cancellation, the Customer must pay the contract price for completed conforming Goods, together with reasonable evidenced costs of work in progress, authorised material commitments and unavoidable subcontractor or cancellation charges.

6.7 Genex must reasonably mitigate those costs and credit avoided expenditure, reuse, recoveries and payments already received. There must be no double recovery. Any deposit surplus must be refunded.

6.8 Cancellation charges do not apply where the Customer lawfully terminates because of Genex's material breach, except for amounts otherwise lawfully payable.

7 Payment and credit

7.1 Unless otherwise agreed, payment is due in cleared funds 30 days after the end of the invoice month. A shorter mandatory statutory period takes priority.

7.2 Credit requires Genex's approval. Deposits, stage payments or payment before dispatch may be required when accepting an order.

7.3 Payment must be in the invoiced currency, which is pounds sterling unless otherwise agreed. The Customer bears its bank's charges and intermediary bank charges; Genex bears its receiving bank's charges unless agreed otherwise.

7.4 Payment is not conditional on the Customer receiving payment from another party or completing internal approval procedures.

7.5 The Customer must not deduct, set off or withhold sums for alleged defects, debit notes, chargebacks or other claims unless agreed by Genex in writing or required by law.

7.6 Genuine invoice disputes must be notified promptly, identifying their basis and amount. Undisputed amounts remain payable on time. Notification does not establish that the disputed amount is not due.

7.7 Genex reserves its statutory rights to late-payment interest, fixed compensation and recoverable reasonable debt recovery costs where applicable, without double recovery.

7.8 If an undisputed amount remains overdue five working days after written demand, Genex may suspend outstanding work and deliveries under Contracts incorporating these terms, subject to applicable law.

7.9 Where objective evidence indicates a material deterioration in the Customer's ability to pay, Genex may request reasonable payment security. Changes affecting existing commitments must be contractually permitted, proportionate and notified in writing.

7.10 Delivery dates will be reasonably extended following a permitted suspension. Reasonable evidenced storage and restart costs caused by payment default may be charged.

7.11 No provision permits action prohibited by insolvency law or other mandatory legislation.

8 Delivery collection and risk

8.1 The order acknowledgement will identify collection or delivery arrangements, the location and agreed transport charges.

8.2 Delivery dates are estimates unless expressly accepted as binding deadlines. Lead times depend on timely information, approvals, materials and agreed payments.

8.3 Genex will notify the Customer of material delays and take reasonable steps to reduce their effect.

8.4 For collection orders, delivery and transfer of risk occur on collection by the Customer or its carrier. Collection is required within seven days of readiness notification.

8.5 Where Genex arranges delivery to the agreed destination, delivery and transfer of risk occur on arrival ready for unloading. The Customer provides safe access and unloading unless agreed otherwise.

8.6 If the Customer fails to collect or accept identified Goods that are ready, risk passes when delivery would otherwise have occurred. Genex may recover reasonable resulting storage and handling costs.

8.7 Genex may make reasonable instalment deliveries and invoice them separately. A defect in one instalment does not automatically justify cancellation of unaffected instalments.

8.8 Quantity variations require an expressly agreed tolerance.

8.9 An agreed Incoterms rule takes priority over inconsistent delivery and risk provisions in this clause.

9 Ownership

9.1 Ownership of Goods supplied by Genex remains with Genex until full cleared payment is received for those Goods and all other Goods supplied to the Customer for which payment is due.

9.2 Until ownership passes, the Customer must preserve identifying marks, keep Goods identifiable where reasonably practicable, maintain their condition and insure against usual risks.

9.3 Until payment becomes overdue, the Customer may use or resell Goods in the ordinary course of business. Ownership passes immediately before an authorised resale.

9.4 Subject to law, following overdue payment Genex may withdraw permission to use or resell identifiable unpaid Goods and require their return.

9.5 Recovery must use lawful access and respect third-party rights and insolvency restrictions. Genex has no right to force entry.

10 Customer materials and property

10.1 Customer-supplied materials and components must be suitable, correctly identified and accompanied by agreed certificates and handling information.

10.2 Genex is not responsible for loss caused by unsuitable Customer material except to the extent caused or contributed to by Genex's breach or negligence.

10.3 Trial quantities, expected process losses and material allowances must be agreed. There is no unspecified automatic scrap allowance.

10.4 Genex will exercise reasonable care over Customer property. Unusually high replacement values must be disclosed before delivery so that handling, insurance and liability arrangements can be agreed.

10.5 Unless agreed otherwise, the Customer must insure its property while at Genex. This does not relieve Genex of liability for its own breach or negligence.

10.6 Ownership and disposal of offcuts, scrap, unused material and fixtures must be agreed. Customer property does not become Genex's property merely because it remains on site.

10.7 The Customer must collect its property within a reasonably specified period after written request. Storage charges and any disposal must be reasonable and lawful, with appropriate notice and accounting for proceeds.

11 Quality and warranty

11.1 On delivery, Goods will conform in all material respects to the Specification and be free from material defects in Genex's workmanship. Services will be performed with reasonable skill and care.

11.2 Genex provides an additional contractual warranty for defects notified within 12 months of delivery. This warranty period is not a contractual limitation period for all legal claims.

11.3 The Customer must inspect within a reasonable time. Visible damage, shortages and readily apparent defects should be reported within five working days. Latent defects must be reported promptly after discovery.

11.4 Late notification does not automatically defeat a valid claim. Liability may be reduced to the extent unreasonable delay causes additional loss or materially prejudices investigation.

11.5 Genex is not responsible for defects caused by Customer design or material, misuse, incorrect storage, installation or maintenance, normal wear or unauthorised alteration, except to the extent Genex causes or contributes to the defect.

11.6 For a valid warranty claim, Genex may repair, replace or reperform within a reasonable time, or refund the affected price. If an appropriate remedy fails or is not provided within a reasonable time, other available remedies remain subject to clause 14 and applicable law.

11.7 Sample or first-off approval does not waive claims for concealed defects or later departures from the Specification.

12 Rejections sorting and chargebacks

12.1 Claims must identify the order, part number, revision, batch or delivery reference, affected quantity and alleged nonconformity, with reasonably available supporting evidence.

12.2 Conformity will be assessed against the agreed Specification, tolerances, inspection methods and acceptance criteria.

12.3 The Customer must segregate suspect Goods, preserve identification and evidence, prevent avoidable further loss, and give Genex a reasonable opportunity to inspect and propose corrective action.

12.4 Before returning, scrapping, reworking or appointing third parties at Genex's expense, the Customer must seek Genex's agreement.

12.5 Prior agreement is unnecessary for reasonable urgent action required to protect safety or prevent materially greater loss where prior contact is impracticable. Prompt notification and preservation of evidence remain required.

12.6 Genex does not accept automatic administration fees, sorting tariffs, penalties, line-stoppage charges, recall charges or downstream claims merely because they appear in Customer documents or a debit note.

12.7 Claims must establish Genex's responsibility and evidence reasonable loss actually incurred. Liability remains subject to clause 14 and applicable law.

12.8 Suspected defects in some Goods do not automatically justify rejection of an entire batch. The scope of containment, inspection or rejection must have reasonable technical justification.

12.9 Return arrangements must be agreed except where a legal right permits return. Reasonable return costs for valid claims will be borne by Genex, subject to the Contract.

12.10 Investigation or corrective action does not by itself admit liability. Payment remains governed by clause 7.

13 Safety incidents and recalls

13.1 Each party must promptly notify the other of a credible safety concern affecting supplied Goods and provide relevant information.

13.2 The parties will cooperate in tracing affected batches, preserving evidence and investigating the cause.

13.3 Where practicable and lawful, corrective action will be discussed before implementation. Nothing delays urgent safety measures or mandatory reporting.

13.4 Responsibility for recall and corrective-action costs depends on the Contract, established responsibility and applicable law. The Customer cannot impose such costs merely by issuing a chargeback.

14 Liability

14.1 Nothing excludes or limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, title obligations that cannot lawfully be limited, or any other liability which cannot lawfully be excluded or limited.

14.2 Subject to clause 14.1, Genex is not liable for indirect or consequential loss.

14.3 Subject to clause 14.1, Genex is not liable for loss of profit, revenue, business, contracts, anticipated savings or goodwill, or production-stoppage losses, whether direct or indirect.

14.4 Subject to clause 14.1, Genex's aggregate liability arising from or connected with a Contract, whether in contract, negligence, other tort or otherwise, is limited to 100% of the total price payable under that Contract.

14.5 Refunds, compensation and the reasonable value of remedial work or replacement supplied to satisfy a claim count towards that cap. No claim may result in double recovery.

14.6 Any different cap, including arrangements for valuable Customer property or substantial downstream exposure, must be expressly agreed in writing.

14.7 Except as expressly stated, implied terms are excluded only to the extent legally permitted. Nothing authorises departure from the Specification.

15 Intellectual property and confidentiality

15.1 Each party retains its pre-existing intellectual property. Customer drawings and designs remain the Customer's property.

15.2 Genex retains its manufacturing know-how, methods, programs and process documents. Payment does not itself transfer those rights. Any specifically commissioned transfer requires written agreement.

15.3 The Customer confirms it is entitled to authorise Genex's use of supplied designs and instructions.

15.4 The Customer must reimburse reasonable losses arising from third-party intellectual property claims caused by Genex following those designs or instructions, excluding loss caused by Genex's unauthorised acts. Genex must promptly notify the Customer and provide reasonable cooperation and an opportunity to manage the defence.

15.5 Each party must protect the other's confidential information and use it only for the Contract. Disclosure is permitted where legally required or reasonably necessary to personnel, advisers or subcontractors under appropriate confidentiality obligations.

16 Subcontracting audits and records

16.1 Genex may subcontract suitable operations unless prior approval is expressly required. Genex remains responsible for its contractual obligations.

16.2 Nominated suppliers, process approvals and additional customer requirements must be agreed before acceptance.

16.3 Contractual audit rights require reasonable notice, agreed scope, confidentiality safeguards and compliance with site safety rules. They do not permit access to other customers' information or unrelated proprietary processes.

16.4 Special record formats, retention periods and additional reports must be agreed and priced before acceptance. Genex will retain records for periods required by applicable law and any agreed contractual requirements.

16.5 Nothing restricts lawful access by regulators or other mandatory inspection rights.

17 Force majeure

17.1 Neither party is liable for delay or failure caused by an event beyond its reasonable control which it could not reasonably prevent or overcome.

17.2 Such events may include natural disaster, fire, war, civil disorder, government restrictions or exceptional utility or transport disruption, where they meet clause 17.1. Supplier failure qualifies only where its underlying cause also meets that test and reasonable alternatives are unavailable.

17.3 The affected party must promptly explain the event, its likely effect and mitigation measures. Only affected obligations are suspended, and performance must resume as soon as reasonably practicable.

17.4 Lack of funds and ordinary cost increases do not themselves qualify. Payment for Goods and Services already supplied remains due.

17.5 After 60 consecutive days of material disruption, either party may terminate the affected unperformed portion by written notice.

17.6 Completed conforming supply and expressly authorised unavoidable commitments remain payable to the extent properly due, allowing for mitigation, recoveries and payments received. No termination penalty applies.

18 Suspension termination and continuing supply

18.1 Either party may terminate for a material breach which, where capable of remedy, remains unremedied 14 days after written notice explaining the breach and required remedy.

18.2 Genex may suspend affected work after reasonable written notice where essential Customer information, approvals, materials or agreed payments are missing.

18.3 All insolvency-related rights and action during insolvency procedures are subject to applicable law.

18.4 Termination preserves accrued rights and provisions intended to continue. Final charges depend on the reason for termination and the Contract; lawful termination for Genex's breach does not trigger Customer cancellation penalties.

18.5 Supplying a part does not create an obligation to provide lifetime supply, spare parts, exclusivity or reserved capacity. Such commitments require express written agreement.

18.6 Declining future unaccepted orders does not release either party from existing accepted commitments.

19 Export sales

19.1 Export Contracts must identify the destination, currency, delivery arrangements, customs responsibilities and required documentation.

19.2 Agreed Incoterms must identify the rule, named place or port and edition. Incoterms govern their stated delivery responsibilities and risk allocation, not ownership or payment.

19.3 The Customer handles import clearance, import licences, destination duties and local taxes unless the Contract or agreed Incoterms allocate them otherwise.

19.4 Before acceptance, the Customer must disclose destination-specific requirements. Genex is responsible for requirements it expressly accepts and obligations imposed directly on it by law.

19.5 Both parties must comply with applicable sanctions, export controls and anti-bribery laws. The Customer must supply reasonably requested end-user and end-use information and must not knowingly divert Goods unlawfully.

19.6 Genex may suspend affected supply while reasonably investigating a credible compliance concern or awaiting necessary authorisation. It may terminate the affected unperformed portion if performance would be unlawful or required authorisation is refused, notifying the Customer as soon as legally permitted and reasonably practicable.

19.7 Where the Customer arranges export, it must provide the evidence reasonably required for VAT treatment within applicable deadlines.

19.8 Genex may require an agreed VAT security deposit before releasing Customer-collected export Goods. It will refund that deposit when satisfactory evidence establishes entitlement to zero rating.

19.9 VAT arising from the Customer's failure to meet agreed export obligations remains payable when properly invoiced. Genex will make corresponding adjustments where later evidence permits lawful correction, without double recovery against a deposit.

19.10 Reasonable evidenced costs caused by Customer customs or documentation failures may be charged. Neither party's statutory obligations are transferred by these terms.

20 Notices

20.1 Contractual notices must be sent to the designated business postal or email address.

20.2 An email notice takes effect when acknowledged or when other evidence establishes receipt. A delivery failure message does not establish receipt. Each party must keep its designated contact details current.

20.3 This clause does not govern service of legal proceedings.

21 General and governing law

21.1 The Contract is the entire agreement concerning its subject matter. Nothing excludes liability for fraud or fraudulent misrepresentation.

21.2 Variations require express written agreement by authorised representatives. Updated standard terms apply to future Contracts only unless otherwise agreed.

21.3 Delay in exercising a right does not waive it. If a provision is unenforceable, the remaining provisions continue so far as legally possible.

21.4 No third party may enforce the Contract under the Contracts (Rights of Third Parties) Act 1999.

21.5 The Contract is governed by the law of England and Wales. The courts of England and Wales have exclusive jurisdiction.